

DIGITAL ECOSYSTEMS: AN IN-DEPTH COMPARISON

The Verge compares the services offered by six tech biggies (Amazon, Apple, Facebook, Google, Microsoft, Sony) and answers questions like "Does Google+ let you do more than Facebook?" <http://dgit.in/Jn24vo>

ORACLE VS. GOOGLE



Two chief executives of the most successful tech companies squared off in court in person. New York Times reports on what went down in the first week of the hearing <http://dgit.in/HYCjSa>

JUST HOW BIG ARE THOSE "OTHER" WEB SITES?

One would think web sites such as Facebook or Wikipedia are the biggest drivers of internet traffic, but ExtremeTech found another source: adult content. An in-depth survey reveals they account for as much as 30 per cent of the data delivered on the web! <http://dgit.in/I0ls2l>

CONTAMINATING ALIEN WORLDS

A new report by Space Science Board urges extreme caution against infection when landing on alien worlds. And it'll be mankind that will be doing the infecting. Read more in the pdf report dug up by none other than Pop-Sci <http://dgit.in/JX4Thl>

to share their information. Chase isn't alone; at SXSW Interactive, Jaron Lanier, computer scientist and author of *You Are Not a Gadget: A Manifesto*, said, "Facebook should pay people for content that enriches Facebook," according to BuzzFeed FWD.

Ownership

The debate over compensation for data reinforces the notion that data is property, but who has responsibility for that property when more than one person "possesses" it is a point of contention. This formerly theoretical concern has become a very real one for those who lost their data (<http://dgit.in/JvIRHp>) in the fallout from the explosion of Megaupload.

Alex Lakatos, a partner of Mayer Brown's litigation and financial services regulatory and enforcement practice, highlighted some of the issues that can arise in situations like Megaupload's. For Megaupload users who are trying to retrieve their data, they'll first face the most basic question: Where is it?

"It's not entirely clear who actually has the data," Lakatos says. "What the government is saying is, 'Well, we just went in and made copies of stuff, so we don't actually have the data anymore.' What Megaupload probably will be saying is, 'Look, we told you in your contract to make your own copies of this stuff and keep it so you don't have any claim against us under contract.' And then you've got a couple of third-party hosts for Megaupload."

Even when that's answered, in any attempts to get that data back, users will have to contend with laws that were not written to deal with technology.

"There is precedent for using a writ of replevin—basically, a very old property claim that allows you to go to court to get back property that someone else has, but

to which you have a superior right, e.g., you left your bicycle at someone's house and they aren't returning it—to obtain e-data." Lakatos cautions that even that could possibly be waived by Megaupload's terms of service.

Reputation

No matter who is ultimately deemed the owner of data online, there's one thing that belongs to everyone and no one—reputation. It is completely in the eyes of the beholders and, perhaps no group knows this so much as over-scrutinized celebrities.

"Even with the greatest amount of control on one's profile, perception is still a variable no one can foresee," says Raphaël Aflalo, co-founder of celebrity brand reputation management company My Love Affair (<http://www.my-loveaffair.com/>). "In many cases and particularly for public figures of the entertainment world, there can be a great amount of distortion between the content provided by a celebrity on his own channels and his online identity as the public perceives it online."

Aflalo stresses that reputation extends beyond the boundaries of a celebrity's own brand. "A celebrity's online reputation is also widely connected to its possible partners," he says. "When it comes to picking the right partnering brands, whether for a sponsored post on Facebook or a 360-degree endorsement campaign, we have to make sure that the partnership makes sense and that the artist's online profile will not be harmed by a wrong choice of partner."

This blurring of the boundaries of online identity and its ownership has been extended to the not-so-famous by employers and university athletic departments. Teams and schools are nervous about putting the reputations of their multimillion dollar pro-

grams in the hands of college students. To head off hits they might take, some are hiring "defense" companies that monitor the social media use of their athletes, such as UDiligence, Varsity Monitor, and CentrixSocial.

Going beyond keeping track of what's already public, these companies have access to the students' accounts to assess what



might harm a program's reputation if it got out. On UDiligence's What We Find page (<http://dgit.in/I3yDhz>), a rotating banner displays NSFW images culled from the social networks of athletes identified by sport and conference at schools it says "are not yet" its clients. Adherence to a program's policy is often a requisite to play on the teams of schools that use the services. Players generally share basic information, "likes," photos, videos, events, check-ins (including those of friends), and details about family members and friends.

It might seem extreme, but consider that brands, which may have invested in how they're represented, also face the dilemma of a dual online identity. Read more of the article here: <http://bit.ly/FPM14E>